



Bill Number: H.B. 2249

Mesnard Floor Amendment

Reference to: EDUCATION Committee amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that, if an act that violates the Parents' Bill of Rights occurred before the general effective date and a person continues to violate the Parents' Bill of Rights after the general effective date, each act that occurs after the general effective date constitutes a separate violation for the purposes of bringing suit against an individual or entity that violates the Parents' Bill of Rights as outlined.
2. Defines *instance* as each day that includes a communication, message, comment or other act that violates the Parents' Bill of Rights.
3. Defines *withhold* as:
 - a) declining to notify a parent or guardian;
 - b) instructing a student to keep information from a parent or guardian; or
 - c) otherwise preventing a parent or guardian from accessing information to which the parent or guardian is entitled to pursuant to the Parents' Bill of Rights.
4. Makes conforming changes.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2249
(Reference to EDUCATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 1-602, Arizona Revised Statutes, is amended to
3 read:

4 1-602. Parents' bill of rights; governmental interference
5 restricted; burden of proof; civil actions;
6 definitions

7 A. All parental rights are exclusively reserved to a parent of a
8 minor child without obstruction or interference from this state, any
9 political subdivision of this state, any other governmental entity or any
10 other institution, including:

- 11 1. The right to direct the education of the minor child.
- 12 2. All rights of parents identified in title 15, including the
13 right to access and review all records relating to the minor child.
- 14 3. The right to direct the upbringing of the minor child.
- 15 4. The right to direct the moral or religious training of the minor
16 child.

1 5. The right to make all health care decisions for the minor child,
2 including rights pursuant to sections 15-873, 36-2271 and 36-2272, unless
3 otherwise prohibited by law.

4 6. The right to request, access and review all written and
5 electronic medical records of the minor child unless otherwise prohibited
6 by law or unless the parent is the subject of an investigation of a crime
7 committed against the minor child and a law enforcement official requests
8 that the information not be released.

9 7. The right to consent in writing before a biometric scan of the
10 minor child is made pursuant to section 15-109.

11 8. The right to consent in writing before any record of the minor
12 child's blood or deoxyribonucleic acid is created, stored or shared,
13 except as required by section 36-694, or before any genetic testing is
14 conducted on the minor child pursuant to section 12-2803 unless authorized
15 pursuant to section 13-610 or a court order.

16 9. The right to consent in writing before this state or any of its
17 political subdivisions makes a video or voice recording of the minor
18 child, unless the video or voice recording is made during or as a part of
19 a court proceeding, by law enforcement officers during or as part of a law
20 enforcement investigation, during or as part of an interview in a criminal
21 or child safety services investigation or to be used solely for any of the
22 following:

23 (a) Safety demonstrations, including the maintenance of order and
24 discipline in the common areas of a school or on pupil transportation
25 vehicles.

26 (b) A purpose related to a legitimate academic or extracurricular
27 activity.

28 (c) A purpose related to regular classroom instruction.

29 (d) Security or surveillance of buildings or grounds.

30 (e) A photo identification card.

31 10. The right to be notified promptly if an employee of this state,
32 any political subdivision of this state, any other governmental entity or
33 any other institution suspects that a criminal offense has been committed
34 against the minor child by someone other than a parent, unless the
35 incident has first been reported to law enforcement and notifying the
36 parent would impede a law enforcement or child safety services
37 investigation. This paragraph does not ~~create~~ ESTABLISH any new
38 obligation for school districts and charter schools to report misconduct
39 between students at school, such as fighting or aggressive play, that is
40 routinely addressed as a student disciplinary matter by the school.

41 11. The right to obtain information about a child safety services
42 investigation involving the parent pursuant to section 8-807.

43 12. THE RIGHT TO CONSENT IN WRITING AND BE INFORMED IF ANY SCHOOL
44 EMPLOYEE FACILITATES OR IMPLEMENTS ANY FORM OF SOCIAL TRANSITIONING FOR
45 THE MINOR CHILD, INCLUDING ADDRESSING OR REFERRING TO THE MINOR CHILD BY A
46 NAME OR NICKNAME OTHER THAN THE MINOR CHILD'S LEGAL NAME OR A NATURAL
47 DERIVATIVE OF THAT NAME OR REFERRING TO THE MINOR CHILD USING PRONOUNS,
48 TITLES OR PERSONAL IDENTIFIERS THAT DO NOT ALIGN WITH THE MINOR CHILD'S
49 SEX. [A SCHOOL DISTRICT OR SCHOOL EMPLOYEE MAY NOT FACILITATE OR

1 IMPLEMENT ANY FORM OF SOCIAL TRANSITIONING FOR A MINOR WITHOUT THE WRITTEN
2 CONSENT OF EACH OF THE MINOR'S PARENTS.]

3 13. IN ADDITION TO THE REQUIREMENTS PRESCRIBED IN PARAGRAPH 2 OF
4 THIS SUBSECTION, THE RIGHT TO REQUEST, REVIEW AND ACCESS THE MINOR CHILD'S
5 COMPLETE EDUCATIONAL RECORD. A SCHOOL EMPLOYEE MAY NOT WITHHOLD
6 INFORMATION FROM A PARENT REGARDING THE PARENT'S MINOR CHILD, INCLUDING
7 ANY INFORMATION IN THE MINOR CHILD'S EDUCATIONAL RECORD REGARDING THE
8 MINOR CHILD'S PHYSICAL, EMOTIONAL, MENTAL OR ACADEMIC WELL-BEING.

9 B. This section does not authorize or allow a parent to engage in
10 conduct that is unlawful or to abuse or neglect a child in violation of
11 the laws of this state. This section does not prohibit courts, law
12 enforcement officers or employees of a government agency responsible for
13 child welfare from acting in their official capacity within the scope of
14 their authority. This section does not prohibit a court from issuing an
15 order that is otherwise allowed by law.

16 C. Any attempt to FACILITATE, encourage or coerce OR ANY COMPLETED
17 ACT THAT FACILITATES, ENCOURAGES OR COERCES a minor child to withhold
18 information from the child's parent is grounds for discipline of an
19 employee of this state, any political subdivision of this state, any other
20 governmental entity or any other institution, except for law enforcement
21 personnel WHO HAVE PROBABLE CAUSE TO BELIEVE THAT A CRIME WAS COMMITTED BY
22 THE MINOR CHILD'S PARENT AND WHO WITHHOLDS THAT INFORMATION IN THE COURSE
23 OF AN INVESTIGATION OF THAT CRIME. THIS STATE, A POLITICAL SUBDIVISION OF
24 THIS STATE, A GOVERNMENTAL ENTITY OR AN INSTITUTION MAY NOT MAINTAIN A
25 POLICY THAT ALLOWS AN EMPLOYEE TO FACILITATE, ENCOURAGE OR COERCE A MINOR
26 CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S PARENT.

27 D. Unless those rights have been legally waived or legally
28 terminated, parents have inalienable rights that are more comprehensive
29 than those listed in this section. This chapter does not prescribe all
30 rights of parents or preempt or foreclose claims or remedies in support of
31 parental rights that are available under the constitution, statutes or
32 common law of this state. Unless otherwise required by law, the rights of
33 parents of minor children shall not be limited or denied.

34 E. Except as prescribed in subsections F and ~~[G]~~ [H] of this
35 section, this state, a political subdivision of this state or any other
36 governmental entity, or any official of this state, a political
37 subdivision of this state or any other governmental entity acting under
38 color of law, shall not interfere with or usurp the fundamental right of
39 parents to direct the upbringing, education, health care and mental health
40 of their children. A parent may bring suit against a governmental entity
41 or official described in this subsection based on any violation of the
42 statutory rights set forth in this chapter or any other action that
43 interferes with or usurps the fundamental right of parents to direct the
44 upbringing, education, health care and mental health of their children in
45 the superior court in the county in which the violation or other action
46 occurs or in federal court, if authorized by federal law, or before an
47 administrative tribunal of appropriate jurisdiction. A parent may raise a
48 violation of this chapter as a claim or a defense. [IN ANY ACTION BROUGHT
49 UNDER THIS SECTION, A SHOWING OF A VIOLATION OF THE RIGHTS GUARANTEED OR

1 RECOGNIZED BY THIS SECTION ESTABLISHES A REBUTTABLE PRESUMPTION OF
2 IRREPARABLE HARM.]

3 F. In any action under subsection E of this section, the
4 governmental entity or official described in subsection E of this section
5 has the burden of proof to demonstrate both of the following:

6 1. That the interference or usurpation is essential to accomplish a
7 compelling government interest of the highest order, as long recognized in
8 the history and traditions of this state in the operation of its
9 regulatory powers.

10 2. That the method of interference or usurpation used by the
11 government is narrowly tailored and is not otherwise served by a less
12 restrictive means.

13 [G. THIS STATE, ANY POLITICAL SUBDIVISION OF THIS STATE OR ANY
14 OFFICIAL ACTING UNDER COLOR OF LAW EXPRESSLY WAIVES ALL CLAIMS TO
15 SOVEREIGN, QUALIFIED OR DISCRETIONARY IMMUNITY FOR ANY VIOLATION OF THIS
16 SECTION.]

17 [G.] [H.] A governmental entity or official described in
18 subsection E of this section may interfere with or usurp the fundamental
19 right of parents to direct the upbringing, education, health care and
20 mental health of their children only if the governmental entity or
21 official successfully demonstrates both elements described in subsection F
22 of this section. If the governmental entity or official is unsuccessful,
23 the court shall grant appropriate relief, ~~such as~~ INCLUDING declaratory or
24 injunctive relief, compensatory damages and attorney fees, based on the
25 facts of the case and the law as applied to the facts. AT A MINIMUM, THE
26 GOVERNMENTAL ENTITY IS LIABLE TO THE MINOR CHILD'S PARENT IN AN AMOUNT OF
27 \$500,000[,] AND A GOVERNMENT OFFICIAL IS PERSONALLY LIABLE TO THE MINOR
28 CHILD'S PARENT IN AN AMOUNT OF \$20,000 FOR EACH SEPARATE INSTANCE OF
29 INTERFERING WITH OR USURPING A FUNDAMENTAL RIGHT. A GOVERNMENTAL ENTITY
30 THAT EMPLOYS THE OFFICIAL MAY NOT INDEMNIFY AN OFFENDING OFFICIAL AND MAY
31 NOT USE PUBLIC MONIES TO PAY FOR THE OFFICIAL'S LIABILITY. THE RIGHT TO
32 SUE BELONGS INDIVIDUALLY TO EACH OF THE MINOR CHILD'S PARENTS[,] AND ONE
33 PARENT MAY FILE SUIT EVEN IF THE MINOR CHILD'S OTHER PARENT DOES NOT
34 CONSENT TO THE ACTION.

35 [H.] [I.] IN ADDITION TO SUBSECTION ~~[G.]~~ [H] OF THIS SECTION, A
36 MINOR CHILD'S PARENT MAY BRING SUIT AGAINST AN EMPLOYEE WHO HAS OR WHO HAS
37 ATTEMPTED TO FACILITATE, ENCOURAGE OR COERCE A MINOR CHILD TO WITHHOLD
38 INFORMATION FROM THE MINOR CHILD'S PARENT. AT A MINIMUM, AN EMPLOYEE WHO
39 IS FOUND LIABLE IS PERSONALLY LIABLE IN AN AMOUNT OF \$20,000[,] AND A
40 GOVERNMENTAL ENTITY THAT EMPLOYS THE EMPLOYEE MAY NOT INDEMNIFY AN
41 OFFENDING EMPLOYEE AND MAY NOT USE PUBLIC MONIES TO PAY FOR THE EMPLOYEE'S
42 LIABILITY. A PARENT MAY BRING SUIT AGAINST THIS STATE, ANY POLITICAL
43 SUBDIVISION OF THIS STATE OR ANY OTHER GOVERNMENTAL ENTITY OR INSTITUTION
44 THAT MAINTAINS A POLICY THAT ALLOWS THE FACILITATION, ENCOURAGEMENT OR
45 COERCION BY THE EMPLOYEE OF A MINOR CHILD TO WITHHOLD INFORMATION FROM THE
46 MINOR CHILD'S PARENT. AT A MINIMUM, THE GOVERNMENTAL ENTITY OR
47 INSTITUTION THAT MAINTAINED THE POLICY IS LIABLE TO THE MINOR CHILD'S
48 PARENT FOR \$500,000 FOR EACH OCCURRENCE ~~[WHERE]~~ [IN WHICH] INFORMATION WAS
49 WITHHELD FROM THE MINOR CHILD'S PARENT. THE RIGHT TO SUE BELONGS

1 INDIVIDUALLY TO EACH OF THE MINOR CHILD'S PARENTS[.] AND ONE PARENT MAY
2 FILE SUIT EVEN IF THE MINOR CHILD'S OTHER PARENT DOES NOT CONSENT TO THE
3 ACTION. THE STATUTE OF LIMITATIONS FOR AN ACTION COMMENCED PURSUANT TO
4 THIS SUBSECTION IS FIVE YEARS AFTER THE CONDUCT CEASED AND THE MINOR
5 CHILD'S PARENT BECAME AWARE OF THE CONDUCT. {{IF AN ACT THAT VIOLATES
6 THIS SECTION OCCURRED BEFORE THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS
7 SECTION AND THE PERSON CONTINUES TO VIOLATE THIS SECTION AFTER THE
8 EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION, EACH ACT THAT OCCURS
9 AFTER THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION CONSTITUTES A
10 SEPARATE VIOLATION FOR THE PURPOSES OF THIS SECTION.}}

11 ~~[I.]~~ [J.] A MINOR CHILD'S PARENT MAY DEMONSTRATE THAT A
12 GOVERNMENTAL ENTITY OR INSTITUTION MAINTAINED A POLICY OF FACILITATING,
13 ENCOURAGING OR COERCING A MINOR CHILD TO WITHHOLD INFORMATION FROM THE
14 MINOR CHILD'S PARENT THROUGH ANY OF THE FOLLOWING:

15 1. WRITTEN DOCUMENTS THAT ARE MAINTAINED BY THE GOVERNMENTAL ENTITY
16 OR INSTITUTION, INCLUDING AS GUIDANCE OR POLICY DOCUMENTS, EMAILS,
17 MEMORANDA OR SPREADSHEETS.

18 2. DEMONSTRATING THAT A PERSON WHO HAS SUPERVISORY AUTHORITY IN THE
19 GOVERNMENTAL ENTITY OR INSTITUTION REQUIRED OR RECOMMENDED THAT EMPLOYEES
20 ENGAGE IN THE CONDUCT.

21 3. DEMONSTRATING THAT THE GOVERNMENTAL ENTITY'S OR INSTITUTION'S
22 EMPLOYEES REGULARLY ENGAGED IN THE CONDUCT. [A CAUSE OF ACTION ACCRUES
23 SEPARATELY FOR EACH DISTINCT ACT OF FACILITATING, ENCOURAGING OR COERCING
24 A MINOR CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S PARENT.
25 FAILING TO ABIDE BY A PARENT'S EXPRESS REQUEST OR HIDING THE ISSUE FROM A
26 PARENT CONSTITUTES A SEPARATE VIOLATION THAT TRIGGERS A NEW ACCRUAL DATE,
27 REGARDLESS OF WHEN THE PARENT FIRST SUSPECTED A SOCIAL TRANSITION WAS
28 OCCURRING.]

29 ~~[J.]~~ [K.] WITHIN SIX MONTHS AFTER THE EFFECTIVE DATE OF THIS
30 AMENDMENT TO THIS SECTION, THIS STATE, A POLITICAL SUBDIVISION OF THIS
31 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL
32 INSTITUTION, OR AN EMPLOYEE OF THIS STATE, A POLITICAL SUBDIVISION OF THIS
33 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION THAT FACILITATED, ENCOURAGED
34 OR COERCED, OR ATTEMPTED TO FACILITATE, ENCOURAGE OR COERCE, A MINOR CHILD
35 TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S PARENT BEFORE THE EFFECTIVE
36 DATE OF THIS AMENDMENT TO THIS SECTION SHALL DISCLOSE THE OFFENDING ACTION
37 TO THE MINOR CHILD'S PARENT. THIS STATE, A POLITICAL SUBDIVISION OF THIS
38 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL
39 INSTITUTION, OR AN EMPLOYEE OF THIS STATE, A POLITICAL SUBDIVISION OF THIS
40 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION IS CIVILLY LIABLE TO THE
41 PARENT OF A MINOR CHILD FOR ANY VIOLATION THAT WAS NOT DISCLOSED PURSUANT
42 TO THIS SUBSECTION. THIS STATE, A POLITICAL SUBDIVISION OF THIS STATE OR
43 A GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL
44 INSTITUTION, IS LIABLE TO THE MINOR CHILD'S PARENT FOR AT LEAST \$500,000
45 FOR EACH SEPARATE ACT THAT WAS NOT DISCLOSED TO THE MINOR CHILD'S PARENT.
46 AN EMPLOYEE OF THIS STATE, A POLITICAL SUBDIVISION OF THIS STATE OR A
47 GOVERNMENTAL ENTITY OR INSTITUTION IS PERSONALLY LIABLE TO THE MINOR
48 CHILD'S PARENT FOR AT LEAST \$20,000 FOR EACH SEPARATE ACT THAT WAS NOT
49 DISCLOSED TO THE MINOR CHILD'S PARENT. A GOVERNMENTAL ENTITY OR

1 INSTITUTION MAY NOT INDEMNIFY AN OFFENDING EMPLOYEE AND MAY NOT USE PUBLIC
2 MONIES TO PAY FOR THE EMPLOYEE'S LIABILITY OR AN INSURANCE POLICY TO COVER
3 THE CIVIL LIABILITY.

4 ~~H.~~ ~~[K.]~~ ~~[L.]~~ For the purposes of this section: ~~.~~

5 1. "EDUCATIONAL RECORD" INCLUDES ATTENDANCE RECORDS, TEST SCORES
6 FROM SCHOOL-ADMINISTERED TESTS AND STATEWIDE ASSESSMENTS, GRADES,
7 EXTRACURRICULAR ACTIVITY OR CLUB PARTICIPATION RECORDS, EMAIL ACCOUNT
8 RECORDS, ONLINE OR VIRTUAL ACCOUNTS OR DATA, DISCIPLINARY RECORDS,
9 COUNSELING RECORDS, PSYCHOLOGICAL RECORDS, APPLICATIONS FOR ADMISSION,
10 HEALTH AND IMMUNIZATION INFORMATION, INCLUDING ANY MEDICAL RECORDS
11 MAINTAINED BY A HEALTH CLINIC OR MEDICAL FACILITY THAT IS OPERATED OR
12 CONTROLLED BY A SCHOOL DISTRICT OR THAT IS LOCATED ON SCHOOL DISTRICT
13 PROPERTY, TEACHER AND COUNSELOR EVALUATIONS, REPORTS OF THE MINOR CHILD'S
14 BEHAVIORAL PATTERNS, THERAPY NOTES AND TREATMENT PLAN.

15 {{2. "INSTANCE" MEANS EACH DAY THAT INCLUDES A COMMUNICATION,
16 MESSAGE, COMMENT OR OTHER ACT THAT VIOLATES THIS SECTION.}}

17 {{2.}} {{3.}} "Parent" means the natural or adoptive parent or
18 legal guardian of a minor child.

19 {{3.}} {{4.}} "SOCIAL TRANSITIONING" MEANS THE PROCESS IN WHICH A
20 PERSON GOES FROM IDENTIFYING WITH AND LIVING AS A GENDER THAT CORRESPONDS
21 TO THE PERSON'S SEX TO IDENTIFYING WITH AND LIVING AS A GENDER THAT IS
22 DIFFERENT FROM THE PERSON'S SEX AND MAY INVOLVE SOCIAL, LEGAL OR PHYSICAL
23 CHANGES.

24 {{5. "WITHHOLD" INCLUDES ALL OF THE FOLLOWING:

25 (a) DECLINING TO NOTIFY A PARENT OR GUARDIAN.

26 (b) INSTRUCTING A STUDENT TO KEEP INFORMATION FROM A PARENT OR
27 GUARDIAN.

28 (c) OTHERWISE PREVENTING A PARENT OR GUARDIAN FROM ACCESSING
29 INFORMATION TO WHICH THE PARENT OR GUARDIAN IS ENTITLED PURSUANT TO THIS
30 SECTION.}}

31 Enroll and engross to conform

32 Amend title to conform

J.D. MESNARD

2249FloorMESNARD.docx

03/18/2026

09:59 AM

C: SP

130FEYCWL